

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Tsui	Team: Squad #15	CCRB Case #: 202105147	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 08/28/2021 3:30 PM	Location of Incident: In front of 650 Madison Avenue on East 59th Street	18 Mo. SOL 2/28/2023	Precinct: 19
Date/Time CV Reported Sun, 08/29/2021 6:43 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 08/29/2021 6:43 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Donald Aridas	30787	939882	019 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Taleb Hossain	04496	955986	019 PCT
2. POM John Slagg	30508	963281	019 PCT
3. POM Ruchiran Dias	05119	966030	019 PCT
4. POM Adam Zigrosser	24842	962889	019 PCT
5. POM Vincent Ching	05074	963455	019 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . POM Donald Aridas	Force: Police Officer Donald Aridas used pepper spray against § 87(2)(b)	A . Substantiated
B . POM Donald Aridas	Abuse: Police Officer Donald Aridas did not obtain medical treatment for § 87(2)(b)	B . Substantiated

Case Summary

On August 29, 2021, § 87(2)(b) filed this complaint with the CCRB over the phone.

At approximately 3:30 P.M. on August 28, 2021, § 87(2)(b) and her boyfriend, § 87(2)(b) were in § 87(2)(b) stopped vehicle on East 59th Street in front of 650 Madison Avenue in Manhattan. Police Officer Donald Aridas of the 19th Precinct turned on his turret lights and approached the couple from the back in his patrol vehicle. § 87(2)(b) and PO Aridas exited their vehicles. PO Aridas told § 87(2)(b) he will issue his vehicle a summons for being double parked. § 87(2)(b) exited the vehicle and walked to where § 87(2)(b) was. § 87(2)(b) instructed § 87(2)(b) to return to the vehicle and she did. § 87(2)(b) got into the front passenger seat and then climbed over the center console to the driver seat. PO Aridas pepper sprayed § 87(2)(b) in the face through the open driver side window (**Allegation A: Force, substantiated**). § 87(2)(b) exited the vehicle and § 87(2)(b) asked PO Aridas to get § 87(2)(b) medical attention. PO Aridas did not call an ambulance to the location. (**Allegation B: Abuse of Authority, substantiated**) PO Aridas' partner, Police Officer Vincent Ching and other officers from the 19th Precinct arrived at the location. PO Ching called an ambulance for § 87(2)(b) EMS treated her on-site with water. After the incident, § 87(2)(b) went to emergency room at § 87(2)(b) Hospital, but was informed by hospital staff that there was nothing they could do for her, and § 87(2)(b) left.

There were no arrests made as of result of the incident. § 87(2)(b) was issued summons for double parking (§ 87(2)(b) operating a vehicle without a license § 87(2)(b) operating an unregistered vehicle § 87(2)(b) and disorderly conduct-obstruction of vehicular traffic § 87(2)(b) (BR 9).

The investigation received BWC video footage for Police Officer Donald Aridas (BR 4), PO Vincent Ching (BR 5), and Police Officer John Slagg, Police Officer Adam Zigrosser, Police Officer Ruchiran Dias, and Sergeant Taleb Hossain (BR 11).

Findings and Recommendations

Allegation (A) Force: Police Officer Donald Aridas used pepper spray against § 87(2)(b)

It is undisputed that East 59th and 5th Avenue was a busy street at the time of the incident with ongoing traffic. It is undisputed that § 87(2)(b) was double parked in his vehicle with tinted windows and left his engine on. It is undisputed that when PO Aridas first approached the location, § 87(2)(b) moved his vehicle forward to make space for PO Aridas, who was behind him. When PO Aridas approached § 87(2)(b) location for the second time, § 87(2)(b) double-parked and exited the vehicle. § 87(2)(b) was parked in front of the Balmain store and spoke with his friends, identified only as § 87(2)(b) and § 87(2)(b) who were on the street. It is undisputed that § 87(2)(b) told PO Aridas to go around his vehicle to get past him.

§ 87(2)(b) and § 87(2)(b) stated (BR1 and BR2) that § 87(2)(b) double-parked next to his intended parking spot and exited the vehicle. § 87(2)(b) remained seated in the front passenger seat. § 87(2)(b) wanted § 87(2)(b) to park the vehicle. § 87(2)(b) stood in between his vehicle and the vehicle adjacent to the sidewalk. At this time, PO Aridas exited his patrol vehicle. PO Aridas instructed § 87(2)(b) to move his vehicle because he was writing summonses on the block. § 87(2)(b) thought that PO Aridas was referring to issuing summonses to street-parked vehicles whose parking meters had

expired. He thought that PO Aridas was telling him to move because his person, not his vehicle, was blocking PO Aridas' access to the street-parked vehicles. § 87(2)(b) asked PO Aridas to walk another way instead of approaching his position where there was only enough room for one person between the various parked vehicles.

PO Aridas told § 87(2)(b) that he would issue him a summons for double parking. PO Aridas began to write in his summons book. He did not issue § 87(2)(b) any instructions. § 87(2)(b) opened his driver door, but PO Aridas closed it. § 87(2)(b) walked approximately three to four feet towards the sidewalk, away from PO Aridas. § 87(2)(b) exited the passenger side of the vehicle and approached § 87(2)(b). PO Aridas told § 87(2)(b) that it will take time for him to finish writing the summons. § 87(2)(b) told § 87(2)(b) to get back into the vehicle. She did so, with the intention to park the vehicle after PO Aridas left. PO Aridas did not issue any instructions to § 87(2)(b) at this time. § 87(2)(b) climbed over the center console and sat in the driver seat. PO Aridas jumped in front of § 87(2)(b) vehicle and extended one hand forward. PO Aridas told § 87(2)(b) "You're not going anywhere." He took out his pepper spray, but dropped it on the ground. § 87(2)(b) told § 87(2)(b) to roll up the window and she did. PO Aridas picked up the pepper spray and sprayed into the driver side window as it went up.

PO Aridas stated (BR 3) 59th Street was a one-way road that consists of three lanes of traffic. The right lane was a no-standing zone. The middle lane was an open lane, and the left lane was also a no-standing zone between 3:00 PM and 7:00 PM. The road was crowded with parked vehicles in the no-standing zone on the north side of the street, causing traffic to move slowly. What was usually three lanes of moving traffic was now restricted to one lane due to how vehicles were parked.

PO Aridas stated that when § 87(2)(b) exited his vehicle, § 87(2)(b) stood between his vehicle and the vehicle parked in the no-standing lane. § 87(2)(b) gestured for PO Aridas to move around his vehicle with his hand. PO Aridas pulled over behind § 87(2)(b). PO Aridas walked to § 87(2)(b) and told him that he did not intend to issue him a traffic violation ticket at that time, but that § 87(2)(b) needed to move his vehicle so that he could write a ticket for the vehicle next to him in the no-standing zone. § 87(2)(b) told PO Aridas to go around him once again. PO Aridas stated that § 87(2)(b) parking was not proper and that it created an unsafe driving conditioning for the road because vehicles would have to go around him on both sides of the street. PO Aridas decided to issue § 87(2)(b) a summons for double parking.

PO Aridas observed that § 87(2)(b) was a younger black male with a muscular build. PO Aridas guessed that § 87(2)(b) was approximately five inches taller and fifty pounds heavier than him. PO Aridas walked back to the rear of § 87(2)(b) vehicle to write him a ticket. § 87(2)(b) followed and blocked his rear license plate with his body. § 87(2)(b) called PO Aridas a clown. PO Aridas stated that he was intimidated by § 87(2)(b) angry demeanor and physicality. PO Aridas stated that he feared for his life, was "frightened to death." PO Aridas did not provide any additional reason that would cause him to fear for his life. PO Aridas stated that § 87(2)(b) wanted to get the attention of bystanders who may hold anti-police sentiments to support him. PO Aridas' adrenaline was high and had difficulty reading the letters and writing the summonses. § 87(2)(b) asked PO Aridas how much longer it will take for him to write the ticket.

PO Aridas laughed to mask the fear he felt. PO Aridas felt uncomfortable and requested additional

officers to the location. § 87(2)(b) told PO Aridas that he will drive his vehicle away. PO Aridas told § 87(2)(b) he was not allowed to leave before he affixed the summons on his vehicle.

At this time, § 87(2)(b) entered § 87(2)(b) vehicle through the front passenger side and then crawled over to the driver seat. PO Aridas opened the driver side door and told § 87(2)(b) that she was not permitted to leave. § 87(2)(b) grabbed PO Aridas' hand and twisted it off the door handle. PO Aridas was frightened and grabbed his pepper spray. PO Aridas back-pedaled to the front of the § 87(2)(b) vehicle. PO Aridas tripped and dropped the pepper spray on the ground. PO Aridas was on the ground and at eye-level with § 87(2)(b) headlights. PO Aridas thought that he was going to get run over by § 87(2)(b) who was still in the driver seat with the engine on. PO Aridas grabbed his pepper spray and stood up. § 87(2)(b) raised the driver side window, which blocked PO Aridas' view of the interior. PO Aridas deployed his pepper spray towards § 87(2)(b) through the window as the half down window went up. A majority of the spray projection landed on the window and a minimal amount of spray projection entered the vehicle. PO Aridas stated that as per his training, he was not supposed to use a firearm against a vehicle, unless there is deadly force being used against him and stated that he did not use his baton because it would be insufficient to stop a vehicle from moving. PO Aridas used pepper spray because it was a projectile that inflicted minimal amount of force to prevent § 87(2)(b) from driving away. PO Aridas stated that his training taught him that pepper spray was best used in an enclosed environment for maximum effectiveness. Approximately five seconds later, § 87(2)(b) exited the vehicle on the driver side and coughed.

According to PO Aridas' BWC video footage (BR 4), at timestamp 3:04 minutes, PO Aridas stands in front of § 87(2)(b) driver door. PO Aridas says that § 87(2)(b) cannot get into the vehicle because earlier § 87(2)(b) stated he was going to drive away. At timestamp 4:14, PO Aridas says that the license plate is written on the summons, the license plate number recorded on the camera, § 87(2)(b) is on the video, and "everything's been done." PO Aridas says, "If she § 87(2)(b) wants to drive away it's no problem because the ticket has already been written." § 87(2)(b) asks why § 87(2)(b) can go but he wasn't allowed into the vehicle. § 87(2)(b) tells § 87(2)(b) to drive away. PO Aridas says "She can't go." § 87(2)(b) tells § 87(2)(b) "Go." § 87(2)(b) asks PO Aridas, "Why can't I leave." PO Aridas replies "Because you can't go. Ma'am, you can't go." At timestamp 4:39, PO Aridas opens the driver door from the outside. § 87(2)(b) closes the driver door and stands in front of it. The video does not capture whether § 87(2)(b) touched PO Aridas' hand. PO Aridas moves directly in front of the headlight for three seconds, and then walks next to the front left wheel of the vehicle and pulls out his pepper spray. PO Aridas drops the pepper spray and picks it up. At timestamp 4:56, PO Aridas holds up the spray and points it towards the driver side window which is half open. PO Aridas says, "I wouldn't move. The vehicle does not move." § 87(2)(b) raises the driver seat window, which was half down. PO Aridas extends his arm toward the window and deploys the pepper spray into the vehicle for approximately one second as the window went up. The spray projecting went on the glass window and inside the vehicle.

According to NYPD Patrol Guide Procedure 221-07 (BR12), pepper spray may be used to gain or maintain control of persons who are actively resisting arrest or lawful custody or exhibiting active aggression, or to prevent individuals from physically injuring themselves, members of the service, or other persons. Pepper spray may be used in arrest or custodial restraint situations where physical presence and/or verbal commands have not been, or would not be, effective in overcoming physical resistance. Officers are not to use their pepper spray on subjects who passively resist (i.e., minimal physical action to prevent a member from performing their lawful duty), and should avoid using pepper spray in small, contained areas such as automobiles and closets.

The Patrol Guide (BR12) defines 1) Passive Resistance as minimal physical action to prevent a member from performing their lawful duty. For example, a subject failing to comply with a lawful command and stands motionless and/or a subject going limp when being taken into custody. 2) Active Resistance as physical evasive movements to defeat a member of the service's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody. 3) Active Aggression as threat or overt act of an assault (through physical or verbal means), coupled with the present ability to carry out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent.

Prior to PO Aridas using his pepper spray, he issued contradicting instructions to § 87(2)(b) and § 87(2)(b). PO Aridas initially told § 87(2)(b) that he was not free to drive away, but then seconds afterwards, PO Aridas told § 87(2)(b) that he already took down his vehicle information and that it could be driven away. When § 87(2)(b) entered the vehicle and got in the driver seat, PO Aridas told her that she could not leave. § 87(2)(g)

§ 87(2)(g)

PO Aridas could not describe any of § 87(2)(b) behavior that was aggressive.

§ 87(2)(g)

§ 87(2)(g)

In the BWC video footage, PO Aridas walks directly in front of the vehicle, after telling § 87(2)(b) that she cannot leave, § 87(2)(g). When PO Aridas deployed his pepper spray, PO Aridas walked away from the front to the left side of the vehicle, adjacent to the driver side window. § 87(2)(b) sat in the driver seat, and was not physically injuring themselves, or any members of the service. § 87(2)(g) did roll up her window, § 87(2)(g).

Therefore, it is recommended that **Allegation A** be closed as *substantiated*.

Allegation (B) Abuse of Authority: Police Officer Donald Aridas did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) stated (BR1 and BR2) stated that after PO Aridas deployed the pepper spray, § 87(2)(b) opened the driver side door and § 87(2)(b) came out coughing and screaming, "He just mace me in the mouth!" § 87(2)(b) walked § 87(2)(b) to the sidewalk. § 87(2)(b) yelled loudly approximately two or three times that she was having difficulty breathing and that her throat was swelling up. § 87(2)(b) asked PO Aridas to get § 87(2)(b) medical attention. PO Aridas radioed for back up. Approximately ten minutes later, PO Ching arrived. PO Ching asked whether § 87(2)(b) needed medical assistance and § 87(2)(b) said yes. PO Ching called for an ambulance. An ambulance arrived approximately fifteen minutes later. The EMTs performed water irrigations on § 87(2)(b) and told her to go to the hospital if she felt unwell later in the day. At an unspecified time after the incident,

§ 87(2)(b) told § 87(2)(b) that she was feeling dizzy and § 87(2)(b) drove her to the emergency room at § 87(2)(b) Hospital. The hospital staff informed § 87(2)(b) that there was nothing they could do for pepper spray. § 87(2)(b) was not treated.

PO Aridas stated (BR3) that after he pepper-sprayed § 87(2)(b) she looked uncomfortable and coughed a few times. PO Aridas did not see any mucus or tears on § 87(2)(b) face. § 87(2)(b) remained standing without support. § 87(2)(b) appeared to have a little trouble breathing. PO Aridas stated that he has asthma and compared § 87(2)(b) breathing to someone who may have suffered an asthma attack. PO Aridas stated that even though § 87(2)(b) looked uncomfortable, it did not mean that an ambulance was needed right away and that he felt § 87(2)(b) just needed time to gather herself and relax. PO Aridas did not recall if he asked § 87(2)(b) if she needed medical attention. Approximately five minutes later, PO Ching arrived. PO Ching asked PO Aridas if he called an ambulance. PO Aridas told him no because § 87(2)(b) did not request it. PO Ching called an ambulance to the location. When the ambulance arrived, § 87(2)(b) refused medical attention. There was no arrest made. § 87(2)(b) was issued summonses for double parking, disorderly conduct-obstruction of vehicular traffic, operating a vehicle without a license, and operating an unregistered vehicle. PO Aridas stated he discovered that § 87(2)(b) did not have a valid license and that his vehicle was unregistered after he pepper sprayed § 87(2)(b) and resume writing the two original summonses.

According to PO Aridas's BWC (BR4), at timestamp 5:25, § 87(2)(b) states that PO Aridas sprayed her in the mouth. At timestamp 7:11, § 87(2)(b) asks PO Aridas to hurry and write the summonses because § 87(2)(b) is having a difficult time breathing. At timestamp 8:34, PO Aridas answers his phone and says, "Vinny, I just have some disorderly people over here." At timestamp 9:04, PO Aridas said that § 87(2)(b) grabbed his hand.

PO Ching's BWC video footage (BR 5) shows that he arrived after PO Aridas used his pepper spray. At timestamp 01:24, he asked § 87(2)(b) if she needs medical attention. At timestamp 1:52, PO Ching tells § 87(2)(b) that an ambulance will respond to the location. At timestamp 4:05, PO Ching says out loud that he got § 87(2)(b) an ambulance.

The Patrol Guide 221-07 (BR12) further states that officers are to request Emergency Medical Service (EMS) once the situation is under control, advise person sprayed that EMS is responding, and remove the subject from the contaminated area and expose them to fresh air while awaiting the arrival of EMS.

§ 87(2)(g)
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Therefore, it is recommended that **Allegation B** be closed as *substantiated*.

Civilian and Officer CCRB Histories

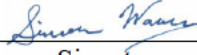
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 8).
- PO Aridas has been a member of service for sixteen years and has been a subject in eleven CCRB complaints and twenty-two allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming pain, discomfort, mental anguish, distress, shame, humiliation, indignity, damage to reputation and loss of employment opportunities and seeking one million dollars as redress (BR6) There is no 50H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad: _____ 15 _____

Investigator:	_____ Jeffrey Tsui Signature	_____ INV Jeffrey Tsui Print Title & Name	_____ 11/01/2022 Date
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Squad Leader:	_____  Signature	_____ IM Simon Wang Print Title & Name	_____ 11/01/2022 Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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